

DISSENTING OPINION BY COUNT ROSTWOROWSKI.

[*Translation.*]

I regret that I am not able to agree with the conclusions and with certain of the reasons given in the Judgment delivered in the case concerning certain German interests in Polish Upper Silesia, and in particular with the following points :

1. — The Court, in its Judgment No. 6, dismissed the plea to the jurisdiction in the so-called case of the Chorzów factory, declared the Application to be admissible and reserved it for judgment on the merits, that is to say, for a decision above all of the dispute as to the applicability or non-applicability in the present case of the provisions of Articles 6 to 22 of Head III of the Geneva Convention, this dispute constituting the only real issue in the case. The jurisdiction which the Court held that it possessed under Article 36 of the Statute was based on Article 23, paragraph 1, of the Convention of Geneva, which, together with Articles 6 to 22 of the same Convention and Articles 92 and 297 of the Treaty of Versailles, has for effect to determine the sense of the solution to be given to the problem thus raised by the litigant Parties.

The mandate conferred by the two States signatories of the Convention, far from being general and unlimited, is, on the contrary, special and circumscribed, both as regards the *facts* and as regards the *legal principles* to be applied in deciding whether these facts are or are not in conformity with them.

The facts must in this case be presented in the form of acts falling within the category of acts regulated in an abstract way in Head III of the Convention, and must be examined in the light of the rules which are inscribed in the Convention.

Facts not possessing the nature indicated, appear to be outside the scope of the Court's consideration, as also is the application of other legal principles, failing a common agreement between the two States, duly provided for in Article 23 which is decisive in fixing the limits of the mandate. The assertion of one of the Parties, for the purpose of interpreting these positive provisions in a wider sense, is not sufficient to overthrow the position of the other Party who relies on and holds strictly to the definite and decisive text of the mandate.

The problem of the applicability of Articles 6 to 22 of the Convention can, it would seem, only be solved in so far as it is shown that the limits laid down by the genuine or presumed—but in any case common—wishes of the Parties have been observed.

This leads me to think that in the present case the dispute between Germany and Poland might and should have been settled without its having been necessary to consider in detail and to give a definite decision on the legality or correctness of the acts with which the Parties charged each other, in so far as these acts were accomplished outside the special sphere delimited by Article 23 of the Convention. The extreme caution which seems to me necessary in the present circumstances is further warranted by the three following considerations :

(a) The system of the Geneva Convention consists of a very methodical division of subjects and a very ingenious distribution of international tribunals before which disputes may be brought—tribunals which are of very different class and nature, but which are directly connected—by the place which the provisions relating to them occupy in the text—with the rules of substantive law which they are called upon to respect and to cause to be respected ; each of these tribunals is enclosed in a water-tight compartment, without the power of its own accord to extend its jurisdiction or its competence over neighbouring sections.

(b) The Parties themselves were careful, by a useful or superfluous precaution, expressly to exclude the intervention of an international jurisdiction. Such is the meaning of Article 2, paragraph 2, of the Convention which, subject to the exception contained in paragraph 1, withdraws from consideration by an international tribunal, even in the case of evocation, the question whether (legislative) provisions enacted by Poland are in conformity with the stipulations of Article 1 ; and Article 1 contains at the beginning and at the end of paragraph 1 two important reserves : *"In so far as the transfer of sovereignty does not involve other consequences, the provisions of substantive law which, at the date of the transfer of sovereignty, are in force in the Polish part of the plebiscite territory, will remain in force for fifteen years, subject to such modifications as may arise out of the transfer of sovereignty."* The two reservations mentioned explain why Poland desired to place all classes of legislative provisions connected with the change of sovereignty outside the scope of international control.

(c) Poland was equally careful to withdraw from an international jurisdiction matters in regard to the interpretation of Article 256 of the Treaty of Versailles, as is shown in Article 4 of Head II and in Article 600 of the Convention of Geneva, and also in the documents relating to the origin of the Convention, from which it appears that the Polish Government was never willing to submit to international proceedings in this matter (Cf. the President of the Reichsgericht, Dr. Simons, in his article entitled: *The International Jurisdictions of the plebiscite territory of Upper Silesia—Blätter für Gesetzeskunde* 1922, No. 6, page 538). In the face of an intention to the contrary so clearly expressed, it is permitted to ask whether the fact of accepting, without imperious reasons, jurisdiction over a dispute arising out of these reserved matters, as over a preliminary point, might not perhaps have for sole effect to compel Poland, by a roundabout method, to submit to what she had not of her own free will been willing to accept.

In these circumstances I am all the more unable to approve of the method, adopted in the Judgment, of dealing with the legitimacy of acts standing outside the compass of Head III, seeing that, even if they were shown to be illegal, this fact would in no way render it unnecessary to return to the principal question, which still remained open, viz. the applicability of Articles 6 to 22 of the Convention.

2. — In accordance with what has been previously said, the law which determines the question of applicability in the present case is exclusively found in Articles 6 to 22 of the Convention of Geneva and in Articles 92 and 297 of the Treaty of Versailles to which Article 7 relates. Its chief subject is liquidation, which we might call "Upper Silesian liquidation", and which forms only a part of the liquidation in its general sense laid down by the Treaty of Versailles. It is the latter Treaty which furnishes the essential elements and detailed rules.

Head III of the Convention of Geneva cannot be separated from the trunk to which it is attached. The substance of liquidation consists, for the States authorized to apply it in relation to Germany, (1) in the right of dispossessing German nationals and companies controlled by German nationals of the object of their possession, and this solely on the ground of such nationality; and (2) in the guarantee offered in principle to owners thus evicted of obtaining an equivalent or an indemnity in valuables not having

any local connection in the country of liquidation. The detailed rules relate to the limitation of the categories of persons liable to liquidation, to the designation of those persons who must pay the indemnity and to the destination of the sums arising therefrom.

Head III of the Convention of Geneva borrows from the Treaty of Versailles the essential elements of liquidation and the rules relating to direct payment of the indemnity by the cessionary State to the owner. It adds a large number of special rules—especially as regards persons and objects liable to liquidation, procedure of liquidation, etc. Far from overthrowing this institution, which stands outside the ordinary principles of law, it retains it, while reducing it to more modest proportions. But that is precisely to what its function is confined, and especially that of Article 6, which, in its first clause, constituting a rule peculiar to Upper Silesia, indicates the limited category of persons and property subject to the liquidation system, and which, in its second clause, protects the property, rights and interests of German national from any liquidation except under this special system.

I do not consider that anything can be found in this new arrangement of the internal system of liquidation, as found in Article 6, of a nature to have effected the slightest change in the working of rules, systems and institutions which are foreign to liquidation.

The result could not have been different if, in Head III, liquidation in Upper Silesia had, as the German Government desired, been entirely prohibited.

From the point of view of terminology it may be remarked that if, in Head III, the term “expropriation” is in preference employed, it is none the less certain that this expropriation has borrowed its whole contents from liquidation, of which it is only one particular application, and that, as is shown in the documents relating to the origin of the Convention of Geneva, the choice of this term was made in view of the indemnities payable to the owner, a fact which made this mode of liquidation similar to the institution of expropriation. But the second clause of Article 6 and the whole special structure of expropriation provided in Articles 7 to 22 are there to show that this particular expropriation has been quite unable to free itself from the bonds which attach it by the substance of liquid-

ation to the Treaty of Versailles. Whether the expression "expropriation in the nature of liquidation" or "liquidation in the nature of expropriation" be used, the thing remains the same, the two terms "expropriation" and "liquidation" being there to explain and supplement each other. What, on the contrary, seems to me incompatible with the provisions of Head III of the Convention is that the whole idea of "liquidation" should be set aside and that, when use is made of the term "expropriation", this term should be employed in its general sense, quite apart from its most intimate connection with the very substance of liquidation.

While I am happy to note that the Judgment admits that certain acts, such as expropriation for public purposes, judicial liquidation, etc., are not affected by the Convention, I regret that I cannot agree with the idea that the Convention affects either any other measures or those which general international law does not permit to be taken as regards foreigners. However worthy of all respect general international law may be, it is certain that it was not incorporated by the will of the Parties in any of Articles 6 to 22 of the Convention, and that Article 23 can in no way serve as a basis for it.

3. — The system then of Head III of the Convention is, as I have tried to show, a system of very well-defined outline and very definite in its consequences, in so far as these relate to the field of contentious procedure. I pass to the other body of facts and legal principles in regard to which a decision has to be given, whether the system of Head III is or is not applicable to it, and in the centre of which is to be found the Polish law of July 14th, 1920, introduced into Upper Silesia in 1922. This law is at the centre, for, the taking over of the Chorzów factory was only carried out in execution of that law, and, on the other hand, the law itself appears as a general measure of execution in relation to other rights and obligations of an international character connected with the change of sovereignty in the territories ceded to Poland by the German Reich. It is the application of Articles 2 and 5 of this law, according to the first German submission, which is to be considered *in abstracto* as a measure of liquidation within the meaning of Articles 6 and the following of the Convention of Geneva. It is further the application of the same articles in connection with the factory of Chorzów that, according to the German submission No. 2, when it speaks of the attitude of

the Polish Government towards the Oberschlesische Stickstoffwerke and Bayerische Stickstoffwerke Companies, is to be declared as not in conformity with the provisions of Article 6 and the following of the Convention of Geneva.

Now, between these two different systems, succession to the property of the Reich and liquidation of private property, there exists no common link. Their legal foundations are quite as different as their structure. The principal partners, Germany as ceding and Poland as cessionary State, are principally interested, without it being possible to forget the Powers concerned in the settlement of reparations. In its action Poland is endeavouring to obtain possession of Reich property which she claims as belonging to her by reason of the change of sovereignty. If individuals are affected, they are only affected accidentally, in a subsidiary and secondary manner. The differential character, so essential for the notion of liquidation, is entirely lacking here.

It is sufficient to observe this in order to conclude that the facts mentioned in the German submission and placed before the Court in view of its decision, are not facts of liquidation or of liquidatory expropriation—and here I am glad to agree with the Judgment, which nowhere seems to recognize that they have that nature.

It is sufficient to observe this in order to conclude further that these facts, not being facts of liquidation, cannot be considered or classified in the light of the provisions of Head III, and therefore cannot be recognized either as in conformity or compatible, or not in conformity and incompatible, with these provisions—and here I regret I do not agree with the Judgment, which, on the contrary, seems to set out from the idea that this logical operation—apart from the notion of liquidation—would be admissible.

Without entering into the details of this demonstration, I beg to dissent from it, by reason of the following general considerations :

(a) The applicability of Articles 6 to 22 of the Convention cannot, I think, be demonstrated by means of showing the incompatibility with these articles of the Polish law ; for, in order to declare a measure incompatible, we must first admit, in any case *in petto*, that these articles are applicable. Two parallel systems may display certain differences without such differences leading to the conclusion that they are mutually incompatible.

(b) When the Judgment states that “having regard to the con-

text of [Article 6 of the Convention], it seems reasonable to suppose that the intention was, bearing in mind the régime of liquidation instituted by the Peace Treaties of 1919, to convey the meaning that, subject to the provisions authorizing expropriation, the treatment accorded to German private property, rights and interests in Polish Upper Silesia is to be the treatment recognized by the generally accepted principles of international law",—it is permissible to see therein only a supposition which conflicts with the second clause of Article 6, which does not incorporate in Head III general international law and contents itself with prohibiting unlawful liquidation.

(c) When the Judgment states that "it is certain that expropriation is only lawful in the cases and under the conditions provided for in Article 7 and the following articles ; apart from these cases, or if these conditions are absent, expropriation is unlawful", it is permissible to ask on what notion of expropriation the Judgment is here based : is it on that of liquidatory expropriation or that of expropriation pure and simple ? For this fact is not without importance for the purpose of drawing, from the passage quoted, conclusions some of which would certainly be far distant from Article 6 of the Convention.

(d) When the Judgment, after stating that the expropriation admitted under Head III is a derogation from the rules generally applied as regards the treatment of foreigners and the respect for acquired rights, further adds : "As this derogation itself is strictly in the nature of an exception, it is permissible to conclude that no further derogation is allowed", it appears not to take account of the fact that the law concerning the treatment of foreigners is not included under Head III, and that the very principle of respect for acquired rights—apart from the derogation admitted under Head III—is pronounced under another Head—Head II—which, in itself, forms an independent body of special legal rules and contains an express reserve : "without prejudice to the provisions of Article 256 of the Treaty of Peace of Versailles".

(e) Finally, when the Judgment states that Head III contains certain prescriptions and formalities to be observed in liquidation procedure, I do not consider that it is possible to draw the further conclusion that the observation of these forms or similar forms is,

by this fact alone, prescribed in other fields of international legal intercourse.

4. — Passing to the last part of the Judgment, which is devoted, with reference to Head III of the Geneva Convention, to the consideration of the various international or national legal grounds on which were based, on the one hand, the Polish law of 1920 and, on the other hand, the contracts concluded on December 24th, 1919, by the Reich with the Oberschlesische Stickstoffwerke and the Stickstoff-Treuhand Gesellschaft—an argument which I regarded as not pertinent and not particularly necessary in the present case—, I confine myself to expressing my regret that I cannot associate myself either with the negative result of this examination, in relation to all the other grounds put forward by Poland, or with the positive results formulated in regard to the contracts of 1919.

(Signed) ROSTWOROWSKI.